sufficient land adjacent to permit the proper operation thereof, and an easement for use of all utility and sewage facilities included in the hospital area.

The Federal Works Agency is further authorized to issue to the State of Florida immediately a temporary occupancy permit for the use and occupancy of the hospital property described above together with all improvements, structures, and nonexpendable equipment located thereon or therein and, in addition, all utility and sewage facilities located within or without the hospital area and which may be required for the use and operation of the hospital facilities.

In the event a discount is claimed by the State of Florida from the current market value of the property, application therefor shall be submitted for consideration and direction in compliance with the regulations.

This order shall become effective February 5, 1946.

EDMUND B. GREGORY,
Lieutenant General, A. U. S.,
Chairman, Board of Directors,
War Assets Corporation.

FEBRUARY 5, 1946.

[F. R. Doc. 46-2228; Filed, Feb. 7, 1946; 11:40 a. m.]

[SPA Reg. 5,[1] Order 14]

PART 8305—SURPLUS NONINDUSTRIAL REAL PROPERTY

AUTHORITY TO FEDERAL WORKS AGENCY TO DISPOSE OF A PORTION OF DREW FIELD, NEAR TAMPA, FLORIDA, TO THE STATE OF FLORIDA FOR USE AS A HOSPITAL

Drew Field, near Tampa, Florida, which has been declared surplus by the War Department, includes a hospital area of approximately 160 acres with improvements suitable for hospital purposes. This area with improvements will be classified as institutional real estate and duly assigned to the Federal Works Agency for disposal. The State of Florida has expressed a desire to acquire the hospital area, together with all its improvements and structures for use by its instrumentality, the Florida Tuberculosis Board, as a State Tuberculosis Hospital.

Pending negotiations for acquisition, the State of Florida desires to obtain a permit for the immediate use of the hospital and facilities. The United States Public Health Service and the United States Veterans' Administration, after investigation, have recommended that this hospital property and facilities be transferred to the State of Florida for said purposes.

Pursuant to the authority of the Surplus Property Act of 1944 (58 Stat. 765; 50 U. S. C. App. Sup. 1611), Public Law 181, 79th Congress, and Executive Order 9689 (11 F.R. 1265); *It is hereby ordered,* That:

1. Notwithstanding the provisions of §§ 8305.11 (d) and 8305.12 (c), (d), (e), and (g), the Federal Works Agency as disposal agency, after having given ten (10) days' written notice of availability to all Government agencies listed in Exhibit B, and after having given public notice of availability in a newspaper published or having general circulation in the county in which the property is located for a period of ten (10) days, is hereby authorized, in the absence of an acceptable proposal from a holder of a higher priority, or a proposal from any State or local government having a priority equal to that of the State of Florida, and showing a greater need, to dispose of the hospital area, consisting of approximately 160 acres of the Drew Field near Tampa, Florida, together with all improvements and structures included in said area, in accordance with the provisions of § 8305.12 (h) (5), and to dispose of the supplies and equipment located thereon or therein in accordance with the provisions of Part 8314,[2] to the State of Florida for use by the Florida Tuberculosis Board in the operation of a tuberculosis hospital.

2. The Federal Works Agency is further authorized to issue immediately to the State of Florida a temporary occupancy permit for the use and occupancy of the hospital property described above, together with all improvements, structures, and nonexpendable equipment located thereon or therein.

3. In the event a discount is claimed by the State of Florida from the current market value of the property, application therefor shall be submitted for consideration and direction in compliance with the regulations.

This order shall become effective February 5, 1946.

EDMUND B. GREGORY,
Lieutenant General, A. U. S.,
Chairman, Board of Directors,
War Assets Corporation.

FEBRUARY 5, 1946.

[F. R. Doc. 46-2245; Filed, Feb. 8, 1946; 11:00 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—General Land Office

Appendix—Public Land Orders

[Public Land Order 313]

ALASKA

MODIFYING EXECUTIVE ORDER NO. 2224 OF JULY 19, 1915, AND RESERVING CERTAIN LANDS FOR USE OF PUBLIC ROADS ADMINISTRATION, FEDERAL WORKS AGENCY

By virtue of the authority vested in the President and the act of March 12, 1914 (38 Stat. 305, 48 U.S.C. secs. 301, 302, 303-308), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 2224 of July 19, 1915, withdrawing and reserving certain lands in Alaska for town site purposes is hereby modified to the extent necessary to permit the following town site lots to be used by the Public Roads Administration, Federal Works Agency, in connection with road building projects and such lands are reserved and set apart for such use.

FEDERAL ADDITION TO SEWARD TOWN SITE

Block 11, lots 8, 9, 10, 11, and 12.

It is intended that the lands described herein shall be returned to the administration of the Department of the Interior when they are no longer needed for the purpose for which they are reserved.

HAROLD L. ICKES,
Secretary of the Interior.

JANUARY 28, 1946.

[F. R. Doc. 46-2234; Filed, Feb. 7, 1946; 2:57 p. m.]

Notices

FEDERAL COMMUNICATIONS COMMISSION.

WDSM, INC.

PROPOSED TRANSFER OF CONTROLS

The figure "$150,00"[1] appearing in paragraph one of the above indicated notice should read "$150,000".

[SEAL] FEDERAL COMMUNICATIONS COMMISSION,
T. J. SLOWIE,
Secretary.

[F. R. Doc. 46-2275; Filed, Feb. 8, 1946; 11:53 a. m.]

FEDERAL POWER COMMISSION.

[Docket No. G-698]

CINCINNATI GAS TRANSPORTATION CO.

NOTICE OF APPLICATION

FEBRUARY 7, 1946.

Notice is hereby given that on January 30, 1946, Cincinnati Gas and Transportation Company (Applicant), a corporation organized under the laws of West Virginia and authorized to do business in the State of Kentucky with its principal place of business at Charleston, West Virginia, filed with the Federal Power Commission an application for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, as amended, for authority to construct and operate the following facilities for the transportation and sale of natural gas in interstate commerce, subject to the jurisdiction of the Commission, to wit:

Approximately 70 miles of 14-inch natural gas pipe line extending from a point on Applicant's existing 20-inch pipe line near Foster, Bracken County, Kentucky, to a proposed interconnection with the 24-inch pipe line of Tennessee Gas and Transmission Company near Means, Menifee County, Kentucky.

Applicant states that the proposed facilities are to augment the capacity of existing facilities for delivery of natural gas to meet increased demands of its

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[1] 10 F.R. 12812, 14028, 14865.

[2] SPA Reg. 14 (10 F.R. 14028).

[1] Appears as $15,000 at 11 F.R. 1440.

present customers, The Cincinnati Gas & Electric Company and The Union Light, Heat & Power Company, both affiliates, and that it does not contemplate rendering service to new customers or to make direct sales from the proposed pipe line. Applicant estimates that 50,000 Mcf of natural gas per day will be delivered by Tennessee Gas and Transmission Company at the proposed interconnection near Means, Kentucky, for the account of United Fuel Gas Company which will be transported to Applicant's existing 20-inch pipe line near Foster, Kentucky.

Any interested State commission is requested to notify the Federal Power Commission whether it considers the application one which should be considered under the cooperative provisions of Part 67 of the provisional rules of practice and regulations under the Natural Gas Act, and if so, to advise the Federal Power Commission as to the nature of its interest in the matter and whether it desires a conference, the creation of a board, or a joint or concurrent hearing, together with the reasons for such request.

Any person desiring to be heard or to make any protest with reference to said application should on or before the 23d day of February 1946, file with the Federal Power Commission, Washington 25, D. C., a petition or protest in accordance with the Commission's provisional rules of practice and regulations under the Natural Gas Act.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 46-2244; Filed, Feb. 8, 1946; 9:34 a. m.]

FEDERAL TRADE COMMISSION.

[Docket No. 5345]

PETITE MISS CO.

ORDER APPOINTING TRIAL EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 6th day of February, A. D. 1946.

In the matter of Samuel Lipman, Louis B. Lipman, Floyd Leibowitz and Louis Welscher, individually and as copartners trading and doing business as Petite Miss Company.

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission,

It is ordered, That James A. Purcell, a trial examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Friday, February 15, 1946, at ten o'clock in the forenoon of that day (Eastern Standard Time), in Room 500, 45 Broadway, New York, New York.

Upon completion of testimony for the Federal Trade Commission, the trial examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The trial examiner will then close the case and make his report upon the facts; conclusions of fact; conclusions of law; and recommendation for appropriate action by the Commission.

By the Commission.

[SEAL] A. N. ROSS,
Acting Secretary.

[F. R. Doc. 46-2246; Filed, Feb. 8, 1946; 11:15 a. m.]

[Docket No. 5378]

BOLGER BROTHERS

ORDER APPOINTING TRIAL EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the fourth day of February A. D. 1946.

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission,

It is ordered, That James A. Purcell, a trial examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Monday, February 11, 1946, at two o'clock in the afternoon of that day (Eastern Standard Time), in Jury Room No. 5, Third Floor, William Penn Annex, 9th and Chestnut Street, Philadelphia, Pennsylvania.

Upon completion of testimony for the Federal Trade Commission, the trial examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The trial examiner will then close the case and make his report upon the facts; conclusions of fact; conclusions of law; and recommendation for appropriate action by the Commission.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 46-2247; Filed, Feb. 8, 1946; 11:15 a. m.]

[Docket No. 5405]

FRED SCHAMBACH

ORDER APPOINTING TRIAL EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 6th day of February, A. D. 1946.

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission,

It is ordered, That James A. Purcell, a trial examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Tuesday, February 19, 1946, at two o'clock in the afternoon of that day (Eastern Standard Time), in Room 505, 45 Broadway, New York, New York.

Upon completion of testimony for the Federal Trade Commission, the trial examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The trial examiner will then close the case and make his report upon the facts; conclusions of fact; conclusions of law; and recommendation for appropriate action by the Commission.

By the Commission.

[SEAL] A. N. ROSS,
Acting Secretary.

[F. R. Doc. 46-2248; Filed, Feb. 8, 1946; 11:15 a. m.]

[Docket No. 5407]

LO-WELL PENCIL CO.

ORDER APPOINTING TRIAL EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 6th day of February A. D. 1946.

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission,

It is ordered, That James A. Purcell, a trial examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Monday, February 18, 1946, at ten o'clock in the forenoon of that day (Eastern Standard Time), in Room 505, 45 Broadway, New York, New York.

Upon completion of testimony for the Federal Trade Commission, the trial examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The trial examiner will then close the case and make his report upon the facts; conclusions of fact; conclusions of law; and recommendation for appropriate action by the Commission.

By the Commission.

[SEAL] A. N. ROSS,
Acting Secretary.

[F. R. Doc. 46-2249; Filed, Feb. 8, 1946; 11:15 a. m.]

[Docket No. 5414]

THE SPARTAN CO. AND DOROTHY LEFOLD

ORDER APPOINTING TRIAL EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 4th day of February, A. D. 1946.